

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 10
Honorable Jeffrey B. El-Hajj**

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 11, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	25CV479669	Daniel Scholl v. Amiel Wade et al.	Click LINE 1 or scroll down for ruling.
Line 2	21CV375921	Yen Lucero v. Ha Dao et al.	Plaintiff's "Emergency Motion for Contempt and Sanctions" against defendant Ha Dao. Notice is not proper. There is no proof of service. Defendant also filed a notice of bankruptcy stay on March 27, 2026, which stays all proceedings in this case until those proceedings are complete. Plaintiff's motion is DENIED WITHOUT PREJUDICE. The court will prepare the order.
Line 3	24CV444866	Itria Ventures LLC v. Anthony Murga, Jr.	Plaintiff Itria Ventures LLC's motion for attorney fees and costs against defendant Anthony Murga, Jr. Notice is proper and the motion is unopposed. The parties signed a settlement agreement in 2024, under which defendant and other entities agreed to pay plaintiff \$310,000. (Exh. A to Takenouchi dec. ISO fee motion, ¶ 1(a).) That agreement has an attorney fee clause. (<i>Id.</i> , ¶ 9.) Plaintiff sued defendant to enforce the agreement. The court granted plaintiff's motion for summary judgment in August 2025. Plaintiff is entitled to reasonable attorney fees under the settlement agreement. (Civ. Code, § 1717.) Plaintiff requests \$11,902.50 in attorney and paralegal fees, consisting of 42.4 hours of attorney time and 0.8 hours of paralegal time. The court finds that time reasonably spent, based on its review of the chart summarizing attorney work attached as exhibit 1 to the Takenouchi declaration. The court further finds the attorneys' rates, which range from \$275 to \$300 per hour, to be well within the range of attorney fee rates for attorneys with similar experience. Plaintiff separately filed a memorandum of costs, seeking \$1,624.08. Plaintiff's motion is GRANTED. Plaintiff is awarded \$11,902.50 in attorney fees and \$1,624.08 in costs. The court will prepare the order.

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Line 4	26CV488397	Santa Clara Valley Water District v. San Jose Water Company et al.	Click LINE 4 or scroll down for ruling.
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9:01 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	23CV413103	Borton Petrini, LLP v. Joseph Commendatore	Order of examination: <u>parties to appear.</u>
Line 2	24CV449540	Main Street Shopping Center, LLC et al v. Una Mas Restaurants, Inc.	Order of examination: <u>parties to appear.</u>
Line 3	25CV473089	Leticia Camacho v. Ana Ocampo-Aguilera	Motion to withdraw as counsel for plaintiff: <u>parties to appear.</u>

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